

SENATE No. 1586

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to smoking cessation agents.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 1586

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1586) of Michael O. Moore for legislation relative to smoking cessation agents. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1428 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to smoking cessation agents.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 94C of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 19F the following section:-

3 Section 19G. (a) Notwithstanding any other law, a licensed pharmacist may dispense
4 Smoking Cessation Agents in accordance with written, standardized procedures or protocols
5 developed by an actively practicing physician registered with the commissioner to distribute or
6 dispense a controlled substance in the course of professional practice pursuant to section 7 if
7 such procedures or protocols are filed at the pharmacist's place of practice and with the board of
8 registration in pharmacy before implementation.

9 (b) Before dispensing Smoking Cessation Agents authorized under this section, a
10 pharmacist shall complete a training program approved by the commissioner, which shall include

11 but not be limited to proper documentation, quality assurance and referral to additional services,
12 including appropriate recommendation that the patient follow-up with a medical practitioner.

13 (c) The department of public health, board of registration in medicine and board of
14 registration in pharmacy shall adopt regulations to implement this section.